

(i) 20 H. 6. 18 a. (k) 27 H. 8. 1 b. the misprision of a certificate of a record on a writ of error shall be amended according to the record, 22 E. 4. 46. and 21 H. 7. 41. but that is by the express provision of the said statute of 8 H. 6. for it was the act of the Judge, which was not amendable by the said branch of the Act, as shall be said after.

A thing apparent to be a misprision, which the (l) clerk of course ought to have added, without any instruction of the party, although it be in a material point, shall be amended in another term. As if in debt brought, the defendant pleads *nil debet*, *et de hoc ponit se super patriam*, *et præd' defendens similiter*; where it (m) ought to be, *et præd' querens similiter*, it shall be amended by this Act of 8 H. 6. 11 H. 7. 2. acc. which case was not amended by this Act of 14 E. 3. as appears by the book in 46 E. 3. before; for the first Act speaks only of process, and this Act speaks of the record and plea. So in an action brought against Sir Roger Townsend, he pleaded in bar, and concluded, which matter *præd' Johan'* is ready to aver, where it should be *Rogerus*; and it was amended by the advice of all the justices; as it is reported in 11 H. 7. 25 a.

And as to the writ of *nisi prius*, it is to be known, that the misprision of the clerk of the Treasury, who writes it, is also therein amendable by this statute, and to be made according to the record, but with this caution, *scil.* that the record of *nisi prius* have sufficient matter in it, either expressed or implied, to give authority to the Justices of Nisi Prius to try the issue; for they cannot try any issue by force of the statutes made thereof, without authority given to them by writ of *nisi prius* and so it is adjudged in 11 H. 6. 11. a. b. in debt against J. S. husbandman; issue was taken, if he was husbandman *die impetrati' brevis*; and the writ of *nisi prius* was, whether he was husbandman (omitting these words, *die (a) impetrationis brevis*) which was the material point of the issue; but the roll was well, and the jury passed for the plaintiff, and found that the defendant was husbandman *die impetrationis brevis* and the writ of *nisi prius* could not be amended by the statute of 8 H. 6. because the Justices of Nisi Prius have no power to try the issue contained in the record, because *die impetr' brevis* was omitted in the *nisi prius*; and if the Justices of Nisi Prius had taken the verdict according to the issue in writ of *nisi prius* that he was husbandman generally, without saying *die impetrat' brevis*, it had been contrary to the roll; wherefore it was awarded, that the plaintiff should sue a *venire facias de novo*. But 9 Eliz. Dyer 260, 261, in *partitione fac'* by Wotton against (b) Anthony Cook and Temple, who appeared, and Temple [162 a] confessed the partition, and judgment given accordingly, *sed cesset executio*. Cook conveyed title in severalty, and traversed the supposal of the writ and count by *absque hoc*, the plaintiff maintained the writ and count, *et hoc petit quod inquiratur per patriam*, *et præd' Anthonius similiter*, *ideo 12, &c.* And in the record of *nisi prius* the issue was well recited, and no part of it omitted: but where the plaintiff concluded, *et hoc petit quod inquiratur per patriam*, by the negligence of the clerk of the Treasury, the writ of *nisi prius* was, *et præd' similiter*, omitting this word *Anthonius* in the close and joining of the issue. And farther, the jury entered into the record of *nisi prius* was, *inter* Wotton plaintiff, and Cook and Temple defendants, where Temple had made a confession of the partition before, and so a stranger to the issue: but the record which warranted it was well enough; and notwithstanding these faults and misprisions, the issue was tried at Nisi Prius, and afterwards by the rule of the Court of Common Pleas, the verdict was well taken, and the said misprisions were amended; for sufficient authority was given by the writ of *nisi prius* (which is but the transcript of the record) to try the issue, and to take the verdict. If a man declare of damages of 100l. and the record of *nisi prius* is 100s. and the jury give damages 20l. the (a) *nisi prius* shall be amended and made 100l. according to the roll:

(i) Br. Amendment 5. Fitz. Amend. 28.

(k) Br. Amend. 1.

(l) Cr. Car. 38. Cr. Jac. 64, 65.

(m) Cr. Jac. 587. 1 Roll. 300. 3 Salk. 31. Skinner 591.

(a) Fitz. Amendment 25. Br. Amend. 82. Salk. 48, 49. 1 Lord Raym. 94.

(b) 1 Roll. 202. Dyer 260, 261. pl. 24, 25. Cr. Car. 54. 278. 2 Brownl. 47. 3 Bulstr. 161. Yelv. 109. Cr. Eliz. 776. Palm. 524. Moor 681.

(a) *Anlea* fol. 157 a. Dyer 251. pl. 25. Br. Amendment 27. 1 Roll. 202. Fitz. Amend. 8. Moor 681.